

25NNCV01902 25NNCV01902

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Case Number: 25NNCV01902 Hearing Date: August 6, 2026 Dept: 414

25NNCV01902 Lawrence

H. Title v. Tomika Smalls, et al.

Thursday, August 6,
2026

[TENTATIVE] ORDER DENYING DEFENDANT,
TOMIKA SMALLS', MOTION TO STRIKE FRAUDULENT DISMISSAL AND FILINGS (9441)

I.

BACKGROUND

Plaintiff

leased an apartment to Defendant, Tomika Smalls, pursuant to a written agreement. The lease expired on December 31, 2023, at which point the tenancy became month-to-month. Plaintiff alleges Defendant breached the lease agreement by engaging in a course of conduct with intent to disturb her upstairs tenant, causing the tenant to demand to be released from his lease obligations. The tenant has since vacated the property. Plaintiff alleged claims for breach of contract, interference with contract relations, negligent interference with prospective economic advantage and nuisance.

The

clerk entered dismissal of the complaint pursuant to Plaintiff's request for dismissal. (Dism. 6/9/26.)

Defendant

moves to strike the dismissal on grounds of fraud and extrinsic fraud. The dismissal

was rejected by the Court Clerk on June 8, 2026, for lack of required signatures, proof of service, and authorization. Defendant contends that the parties' settlement called for a dismissal with prejudice, however, the dismissal is made without prejudice.

Defendant

also finds fault with this Court's denial of Defendant's motion to disqualify and the Court's decision to relate this case formerly pending in Burbank (the Burbank case) to a case she filed at the Stanley Mosk Courthouse bearing Case No. to 24STCV09235 Tomika Smalls v. Lawrence Title (the Employment Action.)

Defendant

contends Plaintiff used an incorrect email addresses for Defendant, which prevented Defendant's notice of hearings.

In

opposition, Plaintiff contends this motion is an attack on the Court's authority to rule on the Notice of Related Cases that Ms. Smalls filed. Ms. Smalls cannot dictate Title's filing of a request for dismissal of his own claims.

In

reply, Defendant files a supplemental brief contending that the opposition was filed late and is a distraction. Defendant contends the dismissal is a manipulated paper trail to illegally extinguish Defendant's active-cross complaint while sweeping undeniable extrinsic fraud under the rug.

II.

DISCUSSION

A.

The opposition

The

opposition is not untimely as Defendant Smalls contends. It was due nine court days before this hearing, which is July 24, 2026. The opposition was filed on July 24, 2026. Even if it was untimely, the court has discretion to consider late papers in favor of the strong policy favoring disposition of the case on the merits. (Kapitanski v. Von's (1983) 146 Cal.App.3d 29, 32). ["Judges are well aware of the

unnecessary burdens placed on courts and counsel when strict compliance with local procedural rules results in the expenditure of unnecessary time and money for the preparation of later section 473 motions."].)

The

Court has considered Defendant Smalls' Motion to Strike, the supplemental declaration filed four days later, and the second supplemental brief and declaration in reply to the opposition filed July 29, 2026. All of Defendant Smalls' briefs have been considered, and therefore, Defendant Smalls has not suffered any prejudice, even if the opposition was filed late.

B.

Analysis

Defendant

Smalls has not shown that Plaintiff Title's dismissal of his own action is fraudulent. An action may be dismissed with or without prejudice upon Plaintiff's written request to the clerk at any time before trial. (Code Civ. Proc., § 581(b)(1).)

Defendant

has not shown how her due process rights were violated. Defendant does not identify which particular hearings, on what date, and in which case she was denied notice and an opportunity to be heard. The argument does not support striking anything as "fraudulent." Defendant does not reference a particular order that was made without notice to her or what particular order should be stricken for lack of notice.

Defendant's

reference to the "Related Case Consolidation" as a "procedural hijacking" is unsupported. Smalls filed a notice of related cases 24STCV09235 to relate it to the Burbank case. (NORC 4.21.26.) The Court ordered the matters related, and the Burbank matter was transferred to this Court. (M.O. 4.29.26.) The Court has authority to relate cases as requested by parties. (CA ST CIVIL RULES Rule 3.300 (h)(2)(A).)

Defendant's

accusation that the Court is colluding with Plaintiff's counsel and that it has abandoned its role as a neutral arbiter is inappropriate and untrue. Defendant

does not identify what filings requiring her consent were filed improperly without her consent.

The

“Smoking Gun” evidence appears to relate to Plaintiff Title’s request for dismissal in the Burbank action. Again, Plaintiff Title is entitled to dismiss his own action upon written request to the clerk. Defendant’s consent is not required.

It

is true that Plaintiff Title first attempted to dismiss the Burbank action on June 8, 2026, but the clerk rejected the request because a request for dismissal without prejudice and with the court retaining jurisdiction pursuant to Cal. Code Civ. Procedure § requires both parties’ signature. (RFD 6/8/26.) The subsequent request for dismissal did not check box 1(a)(3) which required both signatures. Instead, Plaintiff Title, submitted a request for dismissal of the complaint without prejudice, which did not need Defendant’s consent.

Defendant’s

complaint that Title lacked professionalism has no bearing on purported fraud.

Defendant

refers to the June 8, 2026, Case Management Conference and Order to Show Cause why the case should not be dismissed, why sanctions should not be imposed, and why this case should not be dismissed pursuant to the settlement agreement and the Court’s order in Case No. 24STCV09235. The Court set that CMC by order dated May 13, 2026. The clerk gave notice to Defendant Smalls at . Defendant filed a consent to be served electronically at that address. (Consent 5/1/26.) There is no merit to Defendant’s contention that the June 8, 2026, order was “intentionally buried.” Defendant was given notice according to her written consent.

Defendant’s

examination of the procedural history of the case does not reveal anything fraudulent or any particular order that should be stricken. The “narrative style entries” in the Court’s Register of Actions are irrelevant. Defendant contends that Plaintiff’s filing of a motion to enforce settlement “conflicts with the actual status of the case.” Defendant does not elaborate or explain why a mistake in the status of a case warrants striking any particular order.

III.

CONCLUSION

Based

on the foregoing, Defendant's motion to strike is DENIED.